

25STLC07134 25STLC07134

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-03

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Case Number: 25STLC07134 Hearing Date: August 3, 2026 Dept: 25

HEARING DATE: Mon., August 3, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: General

Commercial Properties, LLC v. Melamed, et al.

COMP. FILED: 09-17-25

CASE NUMBER: 25STLC07134

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE ENTRY OF DEFAULT

MOVING PARTY: Defendant Houman David Melamed

RESP. PARTY: Plaintiff General Commercial

Properties, LLC

MOTION TO

SET ASIDE DEFAULT

(Code Civ. Proc., §§ 473(d))

TENTATIVE RULING:

The Court

DENIES Houman David Melamed's motion to set aside the default entered against

him.

General

Commercial Properties, LLC is to give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

June 29, 2026 ☐

Late ☐ None

REPLY: Filed

July 27, 2026 ☐ Late ☐ None

ANALYSIS:

General

Commercial Properties, LLC sued Houman David Melamed, Youssef Melamed, Mitra

Melamed, and Magnolia Print Studio Inc. Youssef

and Mitra demurred, both demurrers were overruled, and both Youssef and Mitra

answered. Houman moved successfully to

quash the October 11, 2025 service of process on himself. General Commercial then served Houman again,

and filed proof of that service. Houman

failed to respond, so General Commercial obtained a default against him in April

2026. Houman now moves to have the

default vacated under Code of Civil Procedure section 473, subdivision (d),

claiming that he was again never validly served with process and that the

default is therefore void. The Court

DENIES the motion.

A registered California process server

declared that he personally served Houman with copies of the summons, complaint, and various other case-opening materials at "13940 NW Passage Apt. 102, Marina del Rey, California 90292." (See Code Civ. Proc., § 415.10.) The process server's declaration is prima facie evidence that General Commercial served Houman. (Evid. Code, § 647; Lee v. Yan (2025) 115 Cal.App.5th 975, 978.) That places the burden on Houman to offer evidence to the contrary. (Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1428.)

As an initial matter, Houman attempts to argue that the Court has already decided the January 2026 proof of service is invalid. Not so. In ruling on Houman's motion to quash the October 2025 service, the Court noted that General Commercial represented that it had re-served Houman, but that "there is no new proof of service in the record," General Commercial had "failed to demonstrate service . . . was done in conformity with the statutory requirements." The Court only struck the October 2025 proof of service that was before it. Houman's argument on this point fails.

Houman also references the supplemental declaration he filed with his previous motion to quash and which purportedly rebuts the January 2026 service. That supplemental filing includes a declaration from Houman's friend, Robert Yager, declaring that Yager was present at the time of service. Now that General Commercial has provided a video taken of the service of process in January 2026, however, Houman attests that the Yager interaction happened at a different time.

Video taken by General Commercial's process server and still images taken from the video show that General Commercial personally served Houman in January. General Commercial's server, Christopher Demirdjian, declared that he "personally delivered the service packet to" Houman, "recorded the service encounter contemporaneously with a body camera," that the video and images attached to the opposition are true and correct, and he has not "altered, edited, or manipulated the substance of the video."

Houman argues that the video does not show him extending his hand for documents, taking any documents, contains no audio of what was said, and therefore does not demonstrate personal service on him. But Houman does not dispute that the video

depicts him, and refusing to accept service does not render personal service invalid when the papers are left as close as possible to the defendant in "some appropriate place where it would be most likely to come to the attention of the person being served." (Crescendo

Corp. v. Shelted, Inc. (1968) 267 Cal.App.2d 209, 212–213; see Trujillo v. Trujillo (1945) 71 Cal.App.2d 257, 260.)

The video demonstrates that the process server attempted personal service. Whether or not Houman immediately received the documents when the process server tried to hand them to him, the process server's hand was later seen to be empty. The server either personally served Houman when Houman opened the door, or he left the documents in an appropriate place where Houman would find them. Either way, the Court finds that Houman has failed to rebut the presumption of valid personal service.

The

Court DENIES Houman's motion to vacate the default entered against him.

General

Commercial is to give notice.